NewsBank inc.

Two new lawsuits reignite the debate over Nazi-looted art in the U.S.

October 6, 2026 | CE Noticias Financieras: English
Section: News | 1339 Words
OpenURL Link

Jewish heirs of Holocaust victims and their representatives have filed two lawsuits in California to assert their claims over paintings looted by the Nazis that still hang in prominent museums in Los Angeles and Auschwitz.

The works of Austrian expressionist artist Egon Schiele are displayed at the Manhattan District Attorney's office and are being returned to the heirs of Fritz Grünbaum, a well-known cabaret artist who was arrested in 1938 and later died in the Dachau concentration camp. (Photo AP/Bobby Caina Calvan) These lawsuits are the first to be filed following the recent passage of laws by California and Congress that strengthen U.S.-based claims regarding artworks forcibly taken from Jewish families during World War II.

One of the lawsuits was filed on Monday in the Los Angeles Superior Court by the Jewish Federation of Greater Los Angeles and its board president, Daniel Gryczman, against the Norton Simon Museum in Pasadena, seeking the return of "Adam and Eve." This refers to two masterful oil paintings on wood, life-sized, created by Lucas Cranach the Elder in 1530.

The other lawsuit was filed the same day in a federal court in Los Angeles by the daughters of the late Dinah Gottliebova Babbitt, a Holocaust survivor and animator based in California who was detained at Auschwitz. This lawsuit demands the return of watercolors of other prisoners that the artist was forced to paint for Josef Mengele, a Nazi doctor who earned the nickname "Angel of Death."

Spokespersons for both museums state that these institutions legally possess the titles to the artworks and intend to continue displaying them to the public. The lawsuits do not specify the monetary value of the paintings.

Families vs. Museums The issue of art looted by the Nazis is an emotionally charged matter, laden with legal and ethical implications, pitting Jewish families who have suffered intergenerational trauma against museums that, in their view, seek to preserve a painful yet important chapter of history.

A photo from the Technisches Museum Wien shows the books of Leopold Singer, an Austrian engineer whose library was looted by the Nazis. (Technisches Museum Wien via The New York Times) Between 1933 and 1945, the Nazi regime orchestrated the largest art theft in world history, seizing over 600,000 artworks throughout Europe that belonged to Jewish families, collectors, and museums. Decades later, many of these masterpieces are housed in prestigious museums worldwide, making the push to recover them more complex than a simple property dispute.

Rabbi Noah Farkas is the president and CEO of the Jewish Federation of Los Angeles, the organization to which Marei von Saher, the sole heir of the Dutch Jewish art dealer Jacques Goudstikker, has ceded her rights. The paintings were confiscated from Goudstikker's collection by Hermann Göring, second-in-command to Adolf Hitler, and changed hands several times before being sold in the 1960s to the Pasadena Museum of Modern Art, which was renamed the Norton Simon Museum in honor of its benefactor.

Farkas stated that the federation plans to use most of the net proceeds from the recovered art to provide assistance to the approximately 2,500 Holocaust survivors living in the Los Angeles area who urgently need it.

"They are incredibly beautiful European masterpieces, stolen from a Jewish family to enrich the Nazi party and finance the war and death machine against the people," he asserted. "It is an honor for us to take on this role on behalf of the community and use most of the proceeds to help these elderly survivors live their last years with dignity, comfort, and peace—something that was denied to their families during the Holocaust."

Marei von Saher expressed her gratitude in a statement to the Jewish organization for taking on her family's cause.

Photograph provided by the Louvre Museum of 31 paintings looted by Nazi Germany, which aims to facilitate connections with their rightful descendants. EFE“This effort represents an important step toward justice for Holocaust survivors and victims of Nazi-era atrocities,” she noted.

New Legislation Jesse Gabriel, a Democratic Assemblyman from Woodland Hills, California, drafted Assembly Bill 2867, signed by Governor Gavin Newsom in September 2024, which requires that state law applies to lawsuits filed by California residents or their heirs seeking to recover art confiscated during the Holocaust or other acts of persecution.

Gabriel, who co-chairs the California Legislative Jewish Caucus, introduced the legislation in response to a federal court ruling that allowed the Thyssen-Bornemisza National Museum, a state-owned entity in Madrid, to retain an Impressionist masterpiece by Camille Pissarro, valued in the millions of dollars.

This painting was seized by the Nazis from the Cassirer family in 1939. This case, which prompted the new law, is expected to be heard in a federal court in California next month.

Gabriel asserted that it is time for museums “to engage in deep introspection about whether they want to be on the right side of history.”

The Norton Simon Museum issued a statement noting that a federal court unanimously determined in 2018 that the museum held valid title to the Cranach paintings. In May 2019, the U.S. Supreme Court declined to intervene in the case, thus upholding the lower court rulings.

They indicated that the Cranach paintings, which originally belonged to the Stroganoff family, were put up for sale in 1931 by the Soviet Union at an illicit auction in Berlin, where they were purchased by Goudstikker. After a complicated history, the paintings were sold to the museum by a descendant of the Stroganoff family. The museum later restored and preserved the pieces.

Photograph provided by the Louvre Museum of 31 paintings looted by Nazi Germany, which aims to facilitate connections with their rightful descendants. / AFP PHOTO / ALAIN JOCARD “For nearly 50 years, they have been displayed at the Norton Simon Museum and will remain accessible to the public for many years,” the statement read.

Pawel Sawicki, a spokesperson for the Auschwitz Memorial, remarked that the watercolors of Romani victims that Gottliebova Babbitt was compelled to paint for Mengele to document his horrific experiments and racial research “must remain in the Memorial” to document the man's crimes. He pointed out that these paintings should not be mischaracterized as “Nazi-looted art” because Gottliebova Babbitt painted them against her will as a prisoner and, therefore, did not possess ownership of the watercolors.

While he understands the family's sentiments, Sawicki emphasized that the portraits of Romani and Sinti victims are among the few documents remaining of Mengele's criminal experiments and should be treated as unique documents related to the history of the Auschwitz concentration camp.

“Fully respecting the rights of those who created some of the documents we have here, we believe that any loss from the Memorial's collections would constitute an irreparable harm,” he stated. “... The loss even of the smallest part of the documentation is an irreparable loss and a blemish on the memory of the victims of Auschwitz.”

Case by Case Analysis Joel Greenberg, founder of Art Ashes, a nonprofit organization in the Philadelphia area that assists Jewish families in tracing and recovering art looted by the Nazis, commented that in addition to California’s law, President Donald Trump enacted an update to the Holocaust Expropriated Art Recovery Act of 2025.

This new law permanently eliminated the statute of limitations to allow Holocaust survivors and their heirs to

indefinitely pursue the recovery of these artworks.

Photograph provided by the Louvre Museum of 31 paintings looted by Nazi Germany, which aims to facilitate connections with their rightful descendants. / AFP PHOTO / ALAIN JOCARD Greenberg explained that the new federal law gives families the right to claim their art up to six years from the time they learn who possesses it.

“These new laws mean that technical defenses will no longer hold up in court,” he stated. “Each case will be heard on its merits.”

He added that the new legislation also ensures that these Jewish families will be heard in court and provided with a fair process to determine the ownership of the stolen art.

“It will ensure that the stories of what happened to European Jewry will not be lost or forgotten,” he expressed. “The art can still be returned to its legitimate owner.”

With information from AP.

Copyright © 2026 ContentEngine, LLC, All rights reserved.

- **Citation (apa Style)**
  Two new lawsuits reignite the debate over Nazi-looted art in the U.S.. (2026, October 6).*CE Noticias Financieras: English.* Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/1AB14299E2B1ED70.